

The easing of shielding: the UK government's abrogation of responsibility

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Anyone who has followed the UK government's attitude to the sick and disabled over the past few years will be unsurprised by the way they are relaxing shielding in the midst of the coronavirus pandemic.

The guidance from the government (Secretary of State for Health and Social Care, 22nd June 2020) is that, from the 1st August, those who are extremely clinically vulnerable:

- must “adopt strict social distancing” and “minimize contact with others outside your household”;
- should “stay at home where possible”;
- “should remain cautious as you are still at risk of severe illness if you catch Coronavirus”;
- but “can go to work, if you cannot work from home”.

So to be clear: “you are still at risk of severe illness” and “the advice is to stay at home” but you “can go to work, if you cannot work from home”.

This is an individuation of risk and responsibility for harm that may come as a result of the virus. It makes it the individual's problem/fault if they are in a situation where they cannot work remotely/from home. It is an abrogation of collective responsibility by the government for the

harm to society's most vulnerable.

Relaxing these guidelines appears at odds with clinical advice from immunologists. For instance, the guidance from Primary Immunodeficiencies (PID) UK is that "if you are highly vulnerable then you are thought to be at risk of more severe disease, so avoidance of getting COVID-19 is the key. This is why shielding is so important". PID UK advises that shielding should be withdrawn only "once we have effective medicines to treat or prevent more severe infection".

Given the relatively small number of people who are in this clinically extremely vulnerable group and who are in work and cannot work remotely/at home, it would have been eminently feasible for the government to underwrite a "furlough-like" system to ensure this group can survive economically. But they have indicated no willingness to do this and, as a result, people will die.

HR departments now have to decide what is meant by "if you cannot work from home" and "where possible" as well as balancing the knowledge that these members of staff "are still at risk of severe illness". Of course, it is hard for the dead to file lawsuits, but I hope that unions and H&S specialists will begin preparations to ensure the wellbeing and protection of those most at risk.